

23STCV04552 23STCV04552

County: los-angeles

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Case Number: 23STCV04552 Hearing Date: August 21, 2026 Dept: 510

No.

13 - Pomona Valley Hospital Medical Center v. Kaiser Foundation Health Plan,
Inc.

Plaintiff Pomona Valley Hospital

Medical Center's Motion to Seal Documents Filed in Connection with Motions in
Limine

Plaintiff

Pomona Valley Hospital Medical Center moves for an order sealing portions of
documents filed in support of, and in opposition to, Defendant's motions in
limine. Defendant did not file an opposition.

Specifically,

Plaintiff moves to seal the following:

1.

Kaiser's Motion in Limine #1 Regarding the
2004 Agreement: Page 6, Lines 15–16; Page 10, Lines 20–21

2.

Kaiser's Motion in Limine #2 Regarding
Cherry-Picked Patient Encounters: Page 7, Line 28; Page 8, Lines 1–6

3.

Kaiser's Motion in Limine #5 Regarding the
Nature of Services: Page 7, Lines 16–25

4.

Exhibit 5 to the Omnibus Declaration of
Joseph A. Reiter and portions of Paragraph 3 of the Omnibus Declaration of
Joseph A. Reiter

5.

Exhibit 1 to the Declaration of Ariana
Fuller in Support of Pomona Valley's Opposition to Kaiser's Motion in Limine
#3: Pages 16, 20-23, 29-32, 35-39, 50, 74, 79, 80, 84, 86, 92, 93, 112

California Rules of Court, rule 2.550(d)
provides:

A court may order that a record be filed under
seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that
overcomes the right of public access to the record;
- (2) The overriding interest supports sealing
the record;
- (3) A substantial probability exists that the
overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored;
and
- (5)
No less restrictive means exist to achieve the overriding interest.

The Court finds an overriding interest
overcomes the right of public access to these documents. Plaintiff states that
the information it seeks to seal includes confidential "contract terms,
contracting strategy, and confidential, sensitive financial reimbursement data,
other hospitals and payors may use this information to strengthen their
relative bargaining power with Pomona Valley and potentially undercut Pomona
Valley's contract negotiations and disputes with payors." (Fuller Decl., ¶ 2.) "[C]onfidential
matters relating to the business operations of" a party can constitute an
overriding interest that justifies sealing of records when "public revelation

of [the] matters would interfere with its ability to effectively compete in the marketplace... ." (Universal City Studios, Inc. v. Super. Ct. (2003) 110 Cal.App.4th 1273, 1286.) Here, Plaintiff has a significant interest in maintaining the confidentiality of its sensitive business information.

This overriding interest supports sealing the record. Here, Plaintiff's right to protect its confidential business information trumps the public's minimal need to access this information. A substantial probability exists that publicly disclosing the information will prejudice Plaintiff's overriding interest and harm it in the marketplace.

In addition, the proposed sealing is narrowly tailored. Plaintiff moves to seal only those portions of exhibits and briefs that reference this confidential information. No less restrictive means exist to achieve the overriding interests in confidentiality.

Disposition

Plaintiff Pomona Valley Hospital Medical Center's motion to seal documents filed in connection with motions in limine is granted.

The Court hereby seals (1) Kaiser's Motion in Limine #1: Page 6, Lines 15–16; Page 10, Lines 20–21; (2) Kaiser's Motion in Limine #2: Page 7, Line 28; Page 8, Lines 1–6; (3) Kaiser's Motion in Limine #5 Regarding the Nature of Services: Page 7, Lines 16–25; (4) Exhibit 5 to the Omnibus Declaration of Joseph A. Reiter and portions of Paragraph 3 of the Omnibus Declaration of Joseph A. Reiter; and (5) Exhibit 1 to the Declaration of Ariana Fuller in Support of Pomona Valley's Opposition to Kaiser's Motion in Limine #3: Pages 16, 20-23, 29-32, 35-39, 50, 74, 79, 80, 84, 86, 92, 93, 112.